



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC) FAR SUBPART 6.3

A Justification for Other Than Full and Open Competition (sometimes referred to more generically as a Justification & Approval (J&A)), is a document required by the FAR that justifies and obtain approvals to contract without providing for full and open competition. Contracting without providing for full and open competition is a violation of statute, unless permitted by one of the exceptions in [6.302](#). Please remember, that contracting without providing for full and open competition (or otherwise not providing fair opportunity) cannot be justified due to a lack of advance planning by the requiring activity or concerns related to the amount of funds available.

This document shall not be used for Federal Supply Schedule acquisitions.

1. Identification of the agency and the contracting activity, and specific identification of the document as a *Justification for Other than Full and Open Competition*.

Agency: Drug Enforcement Administration (DEA)

Contracting Activity Processing the Requirement: Miami Field Division Fiscal

Name of Organization Originating the Requirement: Miami Field Division - SRT

Identification Number (purchase request/solicitation number):

2. The nature and/or description of the action being approved (e.g., new award, modification, follow-on to previous procurement, et.al.).

MFD has acquired a heavy-duty professional grade lowboy equipment trailer (VT3504497) for official use though criminal asset forfeiture. The trailer is capable of servicing DEA heavy duty equipment transport needs within the entire state of Florida and beyond. The trailer was used to conceal contraband, which was cut out at the time of seizure. The trailer has also sat idle in the forfeiture process for years which has led to some degradation of components.

3. A description of the supplies or services required to meet the agency's needs.

The trailer requires component refurbishment, welding and refurbishment necessary for serviceability to fulfill the heavy equipment transport mission. The requested service funds are to restore the trailer to serviceable condition necessary for safe operation.

Total estimated value inclusive of all options:

Period of performance or final delivery date: 30 days



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4. An identification of the statutory authority permitting other than full and open competition.

Check the appropriate box. Only one box may be checked.

☒

[41 U.S.C. 3304\(a\)\(1\)](#) and [FAR 6.302-1](#)

“Only one responsible source and no other supplies or services will satisfy agency requirements”

☐

[41 U.S.C. 3304\(a\)\(2\)](#) and [FAR 6.302-2](#)

“Unusual and compelling urgency”

☒

[41 U.S.C. 3304\(a\)\(3\)](#) and [FAR 6.302-3](#)

“Industrial mobilization; engineering, developmental, or research capability; or expert services”

☐

[41 U.S.C. 3304\(a\)\(4\)](#) and [FAR 6.302-4](#)

“International agreement”

☐

[41 U.S.C. 3304\(a\)\(5\)](#) and [FAR 6.302-5](#)

“Authorized or required by statute”

☐

[41 U.S.C. 3304\(a\)\(6\)](#) and [FAR 6.302-6](#)

“National security”

☐

[41 U.S.C. 3304\(a\)\(7\)](#) and [FAR 6.302-7](#)

“Public interest”

5. A demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited.

Immobile asset; In order to diagnose the nature of the repair(s), a service provider must assess the asset in person. Other service providers will not travel to the asset to assess it. Therefore, alternative quotes for service are not feasible without incurring significantly more cost to the government for asset movement prior to any diagnosis.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [Subpart 5.2](#) and, if not, which exception under [5.202](#) applies.

Agents have made contact to numerous other service providing facilities who decline to remotely diagnose or remotely quote for service over the phone.



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7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

8. A description of the market research conducted (see [Part 10](#)) and the results or a statement of the reason market research was not conducted.

The amount of vendors in the immediate area that can accommodate the all of the needs of the agency is limited. The service prospected providers were at various ranges from the asset. None of them agreed to travel to the asset for diagnosis and required the government to tow to their location for any diagnosis. The requested provider (Josam) was the closest identified and possesses the skill-sets and technical equipment to provide all of the necessary services.

9. Any other facts supporting the use of other than full and open competition, such as:

- i. Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.

Because the asset was used to conceal contraband, which was later cut out of the steel frame at the time of seizure, and the asset sat idle in the forfeiture process for years, the asset now requires fixes, welds, and refurbishments that are intricate, specialized, and required for safe operations. These refurbishments required specialized technicians, equipment, and facility in order to achieve all the necessary tasks. The asset cannot be quoted for service without being at the prospected alternative facility. Due to immobility, the asset can not be moved to alternative facilities for diagnosis without incurring significantly more tow cost.



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- ii. When 41 U.S.C. 3304(a)(1) is cited for follow-on acquisitions as described in [6.302-1\(a\)\(2\)\(ii\)](#), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.

- iii. When [6.302-2](#) is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

- 10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.
N/A

- 11. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.



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Certifications

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.
- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Official

Signature & Title

Date

"I hereby certify that the description of the requirement meets the Government's minimum needs and that the technical data and supporting information, which form the basis for this Justification for Other than Full and Open Competition, are accurate and complete to the best of my knowledge and belief."

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.
- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Office
Technical Point of Contact

Signature & Title

Date

"I hereby certify that this JOFOC/J&A is accurate and complete to the best of my knowledge and belief."

Contract Specialist

Signature

Date

Contracting Officer

Signature

Date

"I have reviewed the subject contract action and find it legally sufficient for award."

Chief Counsel Legal
(if over \$750,000)

Signature

Date



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Reviews and Approvals

FAC Section Chief
(if over \$750,000)

Signature Date _____

Bureau Procurement Chief
(if over \$750,000
per [JAR 2806.304](#))

Signature Date _____

Competition Advocate
(if over \$750,000)

Signature Date _____

Head of the Contracting
Activity (if over \$15M)

Signature Date _____

DOJ Competition Advocate
(if over \$75M)

Signature Date _____

Senior Procurement
Executive (if over \$75M)

Signature Date _____